

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:
Mr. Justice Md. Moinul Islam Chowdury

CIVIL REVISION No. 2190 OF 2010

Ayesha Khatun and others
----- Petitioners
-Versus-
Sufia Khatun and others
----- Opposite Parties

Mr. Debdas Samaddar with
Mr. Senasis Samaddar, Advocates
----- For the petitioners
Mr. Md. Hamidur Rahman, Advocate
----- For the Opposite Party Nos. 1-3,
5-8

Heard on 07.11.2016 and
Judgment on 28.11.2016

At the instance of the present Principal-Defendant-Petitioners, Ayesha Khatun and others, leave was granted directing the judgment and order passed by the revisional court exercising his power conferred by section 115(2) of the Code of Civil Procedure.

The leave granting order is directed against the Judgment and order dated 12.07.2009 passed by the Additional District Judge, 8th Court, Dhaka in Civil Revision No. 55 of 2008 affirming the order No. 114 dated 30.01.2008 passed by the Joint District Judge, 3rd Court, Dhaka in Title Suit No. 80 of 2006 rejecting an application under section 151 of the Code of Civil Procedure for expunging the evidence by Mozammel Haque in his examination in chief and cross examination in part.

The relevant facts for disposal of the Rule, inter alia, are that the predecessor of the present opposite parties No. 1 to 3 and 5-8 as the plaintiffs filed the Title Suit No. 523 of 1975 in the court of the learned the then Subordinate Judge, Dhaka for cancellation of deed mentioned in the schedule of the plaint. The said suit was subsequently renumbered as the Title Suit No. 441 of 1985.

After hearing the parties appearing for the respective parties the then learned Subordinate Judge decreed the suit by the judgment and decree dated 18.04.1987. Being aggrieved and dissatisfied with the judgment and decree the present-petitioner preferred the Title Appeal No. 168 of 1987. The learned appellate courts below after hearing the parties allowed the appeal and remanded the suit for retrial by setting aside the judgment and decree of the trial court.

When the suit was remanded to the court of the then Subordinate Judge as the Title Suit No. 441 of 1985 and during pendency of the suit the present applicant opposite parties made an application under Order 6 Rule 17 of the Code of Civil Procedure for amendment of the plaint which was allowed by the judgment and order dated 28.10.2001. The suit was renumbered as the Title Suit No. 80 of 2006. After hearing of the said suit the plaintiff witness No. 4, Mozammel Hoq, deposed in the court in support of the present plaintiff-opposite parties case which was partly cross-examined by the present defendant-petitioner on 08.04.2007. The original plaintiff died on 07.10.1993 and the present opposite parties have been substituted as the plaintiffs. After partly cross-examined the P.W., 4 in the

suit, the present defendant-petitioner also filed an application under 151 of the Code of Civil Procedure for expunging the deposition of the P.W. 4, Mozammel Hoq.

After hearing the parties the learned Trial Court rejected the application by its judgment and order dated 30.01.2008. Challenging the said judgment and order the present defendant-petitioner filed a revisional application in the court of learned District Judge, Dhaka under section 115(2) of the Code of Civil Procedure being Civil Revision No. 55 of 2008. After hearing the parties the learned Additional District Judge, Court No. 8, Dhaka heard and rejected the application on 12.07.2009. Challenging the impugned judgment and order passed by the learned Additional District Judge, Dhaka this revisional application has been filed under section 115(4) of the Code of Civil Procedure and the present Rule was issued thereupon.

Mr. Debdas Samaddar, the learned Advocate appearing along with the learned Advocate Mr. Senasis Samaddar and the learned Advocate Mr. Bulbul Ahmed submits that the revisional court below committed an error of an important question of law in not considering the terms of remand of the suit by the appellate court sanctioning the defendant to adduce oral evidence exclusively at the cost of Tk. 2,000/- while no other opportunity was sanctioned in favour of the plaintiff in any manner in the order of remand which has resulted an erroneous decision occasioning failure of justice.

The learned Advocate further submits that the plaintiff cannot take any advantage in the further proceedings of the suit after remand because of no order was passed granting such opportunity to adduce evidence nor there was any order for payment of cost by the plaintiff thus, non-consideration of such aspect led the courts below to commit an error of important matter of law resulting in an erroneous decision occasioning failure of justice.

The revisional application and the leave granted thereupon opposed by the present opposite party Nos. 1-3 and 4-8.

Mr. Afsaruddin Ahmed Khan filed vokalatnama on 12.10.2011 but subsequently a separate fresh vokalatnama was filed by the learned Advocate by Mr. Md.Hamidur Rahman without taking no objection certificate along with the application to the Bar Association complaining the previous Advocate refused to give no objection certificate against the principle of the legal profession. The legal practice is that the learned Advocate appointed afresh must obtained a no objection certificate from the previous lawyer. In the instant case there is no no objection certificate but a new set of lawyer has been appointed by the same client, the present opposite parties.

The case on behalf of the present opposite parties which is that the learned appellate court below in the Title Appeal No. 169 of 1987 passed its judgment on 07.10.1993 allowing the appeal and remanded the suit by setting aside the judgment and decree passed by the trial court for retrial of the suit including for giving an opportunity to the present defendant-

petitioner for submitting D.W. in the suit, therefore, the order of remand was not simply for examining D.W. but also retrial of the suit afresh. Therefore the deposition of the P.W. 4 Mozammel Hoq has been lawfully taken by the trial court and there was no illegality committed by the court and hence the Rule should be discharged.

It further transpires from the record that both the courts below passed a concurrent judgment and order rejecting the application made by the defendant-petitioner for expunging the deposition of the P.W. on the basis of the applicable law, therefore, no illegality has been committed by the courts below, thus the leave granted in the application should be dismissed.

Considering the above submissions made by the learned Advocate appearing for the petitioner and the case for the respective parties and also considering the revisional application filed under section 115(4) of the Code of Civil Procedure along with its Annexures therein, in particular, the impugned judgment and order, it appears to me that the original suit was filed by the predecessor of the present opposite parties, namely, Naimuddin Bhuiyan who died in the year of 1993 and the present opposite parties were substituted. The suit was filed regarding the property appertaining to C.S. Khatian No. 609, 158, 623, 756 and 410 at Mouza Dakhin Khan, Dhaka registered the deed dated 24.03.1973 and 05.04.1970. The learned Joint District Judge after hearing the parties decreed the suit and on appeal by the aggrieved present defendant-petitioners the appellate court below remanded the suit by passing the following order, which read as follows:-

“That the appeal is allowed with costs of Tk. 2,000/00. Defendant-appellants is directed to pay the cost within a month from the date of this order and on deposit the cost within time the impugned judgment be set-aside and suit be send back on remand for retrial with the observation of giving opportunity to adduce evidence to the defendant-appellant as made above and in default of payment of cost in time the appeal shall stand dismissed and impugned judgment be confirmed. ”

In this revisional application the lower court record has not been sought and therefore not called for, as such, I am not benefited from the documents in this revisional application but it appears only from the Annexure-A of this application made in the Title Suit No. 80 of 2006. From the plain reading of the above judgment of the appellate court below it transpires that court has created a conflicting decision for all the respective parties in this case because the appeal was allowed but at the same time remanded the suit after setting aside the judgment and decree passed by the trial court. I am inclined to issue an warning to the learned Additional District Judge, 3rd Court, Dhaka not to pass any order which can create multiplicity of litigations among the parties and in future be more careful before passing any such order. However, it appears to me that the court after setting aside the judgment and decree passed by the learned trial court in the Title Suit No. 441/1985 which was subsequently renumbered as Title Suit No. 80 of 2006 by allowing the appeal and remanded the suit for retrial with an observation. If the appeal is allowed, why there is a question of remand for retrial, therefore, this order is not lawful. The trial court initiated the suit for retrial and deposed their respective witnesses in support of the respective cases. Accordingly, the plaintiff witness No. 4

Md. Mozammel Hoq deposed in support of the plaintiff case which was cross-examined by the defendant-petitioner within a long period of time as it appears from the above given facts. It is clear from the given facts that P.W. 4 deposition was in the year of 2002 but the application was filed for expunging the deposition dated on 16.08.2006 while the same defendant-petitioner cross-examined some P.Ws. as such, the application for expunging the deposition of P.W. 4 is considered simply to delay the disposal of the suit which was originally filed in the year of 1975.

The learned Advocate for the petitioner on several occasions raised the question as to legality of the deposition by the P.W. 4 on the ground of taking any deposition was beyond the direction of remand. I have carefully considered the order of remand passed by the appellate court in the Title Appeal No. 169 of 1987 and I consider that the learned trial court below has not committed any error of law by taking the evidence of P.W. 4 as there was an order for retrial of the suit by an opportunity to all parts. The present defendant-petitioners could adduce witnesses, instead of producing D.W. the present defendant-petitioners filed an application for expunging of P.W. 4 Mozammel Hoq which is not issue in the order of remand, therefore, I do not consider that the learned trial court below committed any error of law by rejecting the application for expunging the deposition of P.W. 4. It transpires to me from the given facts that the present petitioners have been dragging the matter for as long as more than 40 years without any valid reason and in order to delay disposal of the suit. I am not inclined to interfere into the impugned judgment and order passed by the

learned Additional District Judge, Court No. 8, Dhaka in the Civil Revision No. 55 of 2008. Accordingly, I do find merit in the leave granting order.

In the result, the leave granting order passed on the basis of a revisional application under section 115(4) of the Code of Civil Procedure is dismissed.

The learned Joint District Judge, Court No. 3, Dhaka is hereby directed to conclude the deposition of Title Suit No. 80 of 2006 after giving opportunity to both the parties and also producing documentary evidence in support of the respective cases.

The learned Joint District Judge further directed to conclude the hearing within 8(eight) months from the date of receipt of the copy of this judgment as this matter has been pending for a long before that court which was previously concluded by hearing the parties.

The interim order of stay granted at the time of issuance of the Rule upon further proceeding of Title Suit No. 80 of 2006 now pending in the Court of District Judge, 3rd Court, Dhaka is hereby recalled and vacated.

The office is directed to communicate the judgment and order to the court concerned and send down the lower court records immediately.